

STATE OF NEW YORK

9164--A

2025-2026 Regular Sessions

IN ASSEMBLY

October 17, 2025

Introduced by M. of A. PAULIN, WRIGHT, DINOWITZ, GALLAGHER, SEAWRIGHT, REILLY, CUNNINGHAM, HEVESI, SIMON -- read once and referred to the Committee on Housing -- recommitted to the Committee on Housing in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public housing law, in relation to establishing uniform waiting list priorities for domestic violence survivors applying for public housing

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The public housing law is amended by adding a new section 62 to read as follows:

§ 62. Waiting list priorities; domestic violence. 1. Where a public housing authority establishes applicant preferences on their waiting list, applicants who are victims of domestic violence shall receive transfer and placement priority where the victim of domestic violence:

(a) will continue to suffer from domestic violence if they continue to live in their current residence; or

(b) has left their residence due to domestic violence and is not living in standard permanent replacement housing.

2. For the purposes of this section, "domestic violence" shall have the same meaning as defined 34 U.S.C. section 12291 (a) (12).

3. For applicants on the waiting list with the same preference status, public housing authorities shall select applicants using the date and time of application, giving priority to applications in the order of which they are received.

4. Nothing in this section is intended to prevent a public housing authority from establishing their own priority code or system for public housing, provided, however, that victims of domestic violence shall receive the highest priority in public housing or transfers unless such

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

LBD00197-04-6

1 code or system prioritizes homeless families or individuals and municip-
2 al agency referrals.

3 5. The provisions of this section shall not apply to a city with a
4 population of one million or more.

5 § 2. This act shall take effect immediately and shall apply to public
6 housing authorities upon the addition of any person to any of the
7 authority's waiting lists.